BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Email: bnn.cdl@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION; KEELY DODD, in her individual capacity; GARY NOGUCHI, in his individual capacity; JOSEELYN ROJO, in her individual capacity; and DOES 1 through 20, inclusive, Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (Unlimited Civil Case) 1. Negligence 2. False Imprisonment 3. Intentional Infliction of Emotional Distress 4. Breach of Mandatory Duty (Gov. Code Sec. 815.6) Amount Demanded Exceeds $25,000 Bench Trial Elected

INTRODUCTION

1. Plaintiff BRENDAN NGEHSI NEWANFORBI brings this action for money damages against Defendants the CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION ("CDCR"), KEELY DODD, GARY NOGUCHI, JOSEELYN ROJO, and DOES 1 through 20. This is a civil action at law for damages arising from the affirmative misconduct of state actors who, having voluntarily undertaken to adjudicate Plaintiff's parole status, executed that adjudication through a facially void instrument: a CDCR Form 1502-DR Discharge Review Report that identifies a different parolee ("Eagan") by name, invokes a fabricated "6.5-year" eligibility rule found in no statute or regulation, was prepared on an obsolete

form, omitted every mandatory procedural safeguard, and was never served on Plaintiff.

2. This action does not seek Plaintiff's discharge from parole, an order compelling any future parole decision, or any adjudication of the length of Plaintiff's parole term. Plaintiff expressly does not ask this Court to declare that he was entitled to early discharge. Plaintiff seeks only retrospective and compensatory relief—money damages—for the discrete tortious acts of individual state employees who exercised custodial power over him through an instrument that was void on its face and that bore the name of another human being. These are remedies that lie exclusively in a civil action at law and are categorically unavailable through a petition for writ of habeas corpus.

3. The distinction is dispositive. A companion proceeding, Newanforbi v. Macomber (Sacramento Super. Ct. No. 26WM000028), sought prospective relief—an order setting aside the discharge determination and compelling an individualized review—through a petition for writ of mandate. By tentative ruling dated May 29, 2026, the court held that such custody-directed, prospective relief belongs in habeas corpus and that, because Penal Code section 3000(b)(2)(B) imposes a ten-year parole term, CDCR had no duty under Penal Code section 3008 to conduct an early individualized review. This complaint is fundamentally different in kind. It does not seek release, does not seek a future review, and does not depend on any duty to discharge. It seeks damages for completed torts. Habeas corpus cannot award lost wages, compliance costs, emotional-distress damages, or punitive damages; only this civil action can.

4. Critically, even a court persuaded that Plaintiff must serve a ten-year term cannot thereby license the affirmative wrongs alleged here. The lawfulness of Plaintiff's underlying parole term and the lawfulness of the particular November 2025 instrument used to administer it are two separate questions. A state may have authority to supervise a person and still incur liability when its agents exercise that authority through a fabricated, misidentified, and unserved decree. The Macomber court itself found it "unclear why CDCR appeared to undertake parole

discharge review" at all and noted that CDCR "refuse[d] to provide any explanation for this course of conduct." Having elected to undertake that review, Defendants assumed a ministerial duty to execute it lawfully. They did not.

5. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered and continues to suffer documented economic losses, out-of-pocket compliance costs, severe emotional distress, and reputational harm. Plaintiff seeks compensatory damages, and punitive damages against the individual Defendants whose willful, oppressive, and malicious conduct warrants exemplary relief. Punitive damages are not sought against CDCR. (Gov. Code Sec. 818.)

PARTIES

6. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person residing in Stockton, San Joaquin County, California. He holds a valid Class A Commercial Driver's License ("CDL") and possesses the training and qualifications to earn approximately $72,000 per year as a journeyman CDL truck driver. He is presently supervised by CDCR's Division of Adult Parole Operations ("DAPO"), Stockton 2 GPS Parole Unit, Region N.

7. Defendant KEELY DODD (Badge #6462) is a Parole Administrator employed by CDCR/DAPO. On information and belief, Dodd's principal office and duty station are at DAPO Northern Region Headquarters in Sacramento County. On November 19, 2025, Dodd was the final approving official whose electronic signature converted a facially defective field recommendation into an operative administrative decree. The report she approved applied mutually exclusive parole-term frameworks, relied on a fabricated 6.5-year supervision rule, identified a different parolee by name ("Eagan"), omitted all required good-cause and Containment Team Meeting ("CTM") documentation, used an obsolete review form, and reflected no service on Plaintiff. Dodd possessed authority to reject, correct, or remand the report and declined to exercise it, instead recording the comment, "Concur with the Unit Supervisor,

continued parole supervision is warranted and recommended at this time." As the final approving official, Dodd had an independent duty to review the recommendation before adopting it, and could not discharge that duty by reflexively deferring to subordinates. The defects were facial and obvious; no reasonable administrator in Dodd's position could have relied on the recommendation as a basis for action without first correcting the misidentification, the fabricated eligibility rule, and the use of a superseded form. Dodd is sued individually pursuant to Government Code section 820(a).

8. The CDCR Form 1502-DR recommendation was authored and electronically signed on November 14, 2025 by CDCR/DAPO parole agent Long Moua (Badge #7472). Moua is not named as a defendant in this action; his conduct is alleged as the act of a CDCR employee acting within the course and scope of his employment, for which CDCR is responsible under Government Code section 815.2(a), and as the factual predicate that the supervisory Defendants thereafter ratified and finalized. In preparing the recommendation, Moua (a) inserted a fabricated "10-year parole term" eligibility exclusion contradicting the report's own Case Type classification of PC 3000(b)(5)(B); (b) fabricated a "6.5-year" minimum supervision requirement unsupported by any enacted law; (c) applied a fabricated Policy 19-03 exclusion that does not exist in any published version of that policy; (d) included internally contradictory characterizations; (e) failed to aggregate the form's mandatory scoring criteria; (f) omitted all CTM documentation and Form 3043; and (g) used the obsolete CDCR Form 1502-DR (Rev. 01/22). The defects in Moua's recommendation were not latent or buried; they were apparent on the face of the document to anyone who read it. The recommendation named a different parolee, invoked an eligibility rule that exists in no statute or regulation, and was prepared on a superseded form—errors that required no investigation, no outside information, and no specialized judgment to detect. Any reasonable reviewer exercising the most cursory examination would have identified them and declined to adopt the recommendation without correction or remand.

9. Defendant GARY NOGUCHI (Badge #7284) is a Unit Supervisor employed by

CDCR/DAPO who reviewed and ratified the report, electronically signing it on November 19, 2025. Noguchi's written comments identify a different parolee—"Eagan"—by name, stating that "Eagan has only completed approximately 4 years of the required 6.5 years of supervision." Plaintiff is not Eagan. This misidentification appears in Noguchi's own comments and was his own act; it is not something he merely failed to catch in a subordinate's work, and he therefore cannot claim to have reasonably relied on the agent for it. Noguchi assessed Plaintiff as "Stable 6/LSCMI 5," a below-average risk level, yet endorsed retention; he simultaneously commended Plaintiff for "maintaining compliance with parole supervision" while ratifying an adverse recommendation. A supervisor reviewing a discharge recommendation has an independent duty to verify the identity of the person whose liberty is at stake; the defects here were apparent on the face of the document and foreclosed any reasonable reliance on the agent's work. Noguchi is sued individually.

10. Defendant JOSEELYN ROJO is a Parole Agent employed by CDCR/DAPO who assumed responsibility as Agent of Record on November 19, 2025. Rojo failed to serve the finalized report on Plaintiff. The "Parolee Provided Copy (Date)" field on page 5 of the 1502-DR is blank, and neither the "Mailed By" nor "Delivered By (Initials)" fields are completed. This failure deprived Plaintiff of any opportunity to challenge the adverse decision and concealed its existence from him. Rojo is sued individually.

11. Defendant CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION ("CDCR") is a department of the State of California with its headquarters in Sacramento County. CDCR is vicariously liable under Government Code section 815.2(a) for injuries proximately caused by the acts and omissions of its employees—including Defendants Dodd, Noguchi, and Rojo, and its parole agent Long Moua—committed within the course and scope of their employment.

12. Defendants DOES 1 through 20 are sued under fictitious names pursuant to Code of

Civil Procedure section 474. Their true names and capacities are unknown to Plaintiff, who will amend to allege their true names and capacities when ascertained.

13. At all relevant times, each individual Defendant acted within the course and scope of employment with CDCR. Each is liable under Government Code section 820(a) for injury caused by his or her act or omission to the same extent as a private person, subject to no immunity applicable to the affirmative, ministerial misconduct alleged.

JURISDICTION AND VENUE

14. This Court has jurisdiction pursuant to Article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy exceeds $25,000, establishing this as an unlimited civil case. This is an action at law for damages, not a petition for extraordinary writ; the relief sought (compensatory and punitive damages) is available only in a civil action and cannot be obtained in habeas corpus.

15. Venue is proper in San Joaquin County. This is an action against public officers for acts done in virtue of their office, and Code of Civil Procedure section 393(b) makes proper the county in which the cause, or some part of the cause, arose. A substantial part of each cause of action arose in San Joaquin County: the void November 19, 2025 determination took effect upon Plaintiff there; the restraints that constitute the alleged false imprisonment—continuous GPS monitoring, curfew, warrantless searches, and mandatory treatment attendance—are imposed and enforced upon Plaintiff in Stockton, San Joaquin County, where he is supervised by the Stockton 2 GPS Parole Unit; Defendant Rojo's failure to serve the decision deprived Plaintiff of notice in San Joaquin County; and Plaintiff's resulting injuries, including his loss of liberty, lost CDL earnings, compliance costs, and emotional distress, were and continue to be suffered there. Venue is additionally proper under Code of Civil Procedure section 395(a) because the injury to Plaintiff—a natural person residing in San Joaquin County—occurred and continues to occur in

San Joaquin County. To the extent any part of the cause may also be said to have arisen in another county by reason of the location of an approving official, San Joaquin County remains a proper county because some part of the cause arose here.

COMPLIANCE WITH THE GOVERNMENT CLAIMS ACT

16. Plaintiff has fully complied with the presentment requirements of the Government Claims Act, Government Code sections 900 through 915.4. On April 23, 2026, Plaintiff presented a written claim to the California Government Claims Program—the appropriate state claims entity for claims against CDCR (Gov. Code Sec. 915(b))—identifying CDCR as the responsible department and November 19, 2025 as the date of incident. The claim was accepted for filing and the $25 filing fee was processed the same day (Confirmation No. 26042324436661). A true and correct copy of the claim as presented is attached as Exhibit A.

17. The California Government Claims Program did not act on Plaintiff's claim within the 45-day period prescribed by Government Code section 912.4(a). That period, including the entirety of the forty-fifth day, expired on June 7, 2026, and Plaintiff's claim was thereupon deemed rejected by operation of law. (Gov. Code Sec. 912.4(c).) No written notice of action on the claim was ever given. (Gov. Code Sec. 913.)

18. Plaintiff has satisfied the exhaustion requirement of Government Code section 945.4. This action is brought after the claim was deemed rejected, not before, and is therefore not premature. Because no written notice of rejection conforming to Government Code section 913 was ever served, the two-year limitations period of Government Code section 945.6(a)(2) applies, and this complaint is filed within it.

TIMELINESS

19. Each cause of action is timely under the applicable statute of limitations:

a. Negligence and breach of mandatory duty (CCP Sec. 335.1): Two years. The operative breach occurred on November 19, 2025; each day of continued supervision under the void instrument constitutes a new breach under the continuing-tort doctrine.

b. False imprisonment (CCP Sec. 340(c)): One year, subject to the continuing-tort doctrine. Each day of ongoing restraint under the facially void November 19, 2025 instrument constitutes a separately actionable violation; this complaint is timely as to all damages accruing within one year of filing.

c. Intentional infliction of emotional distress (CCP Sec. 335.1): Two years, on the same continuing-tort analysis.

19A. Each day that Defendants continue to enforce the void November 19, 2025 determination constitutes a new and separately actionable wrong. Under the continuing-tort doctrine, where a tort involves continuing or repeated conduct, the limitations period does not begin to run until that conduct ceases, and the plaintiff may recover for all injury occurring within the limitations period measured backward from filing. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197-1199; Watts v. Johnson (2018) 27 Cal.App.5th 734.) Because enforcement of the void instrument is ongoing, all of Plaintiff's claims are timely as to damages accruing within the applicable periods.

RELIEF SOUGHT; PROPRIETY OF A CIVIL DAMAGES ACTION

20. Plaintiff seeks money damages only. He does not seek release from parole, an order directing any future parole determination, invalidation of his parole term, or any other relief directed at his custody. This framing is deliberate and dispositive of the procedural objection that

defeated the companion mandate petition.

21. In Newanforbi v. Macomber, the court held that a parolee challenging a parole-retention decision and seeking to set it aside and compel a new review "should have raised this parole discharge challenge in a petition for writ of habeas corpus," because a parolee is in constructive custody and habeas is "the preferred method by which to challenge" post-conviction action. That holding addressed prospective, custody-directed relief. It has no application to a claim for damages. A petition for writ of habeas corpus cannot award compensatory damages for lost earnings, out-of-pocket costs, or emotional distress, and cannot award punitive damages against individual officers. The exclusive vehicle for those remedies is a civil action at law against the responsible employees and their employer under Government Code sections 815.2 and 820. (See Sullivan v. County of Los Angeles (1974) 12 Cal.3d 710, 718-720 [damages action for unlawful detention].)

22. Plaintiff's damages theory does not require, and does not assert, any right to early discharge. It rests instead on the independent proposition that when a public entity voluntarily elects to undertake a formal adjudication of a person's status, its agents have a ministerial duty to execute that adjudication through procedurally valid, individualized, and correctly identified process—and that exercising custodial power through an instrument that fails those basic requirements is tortious regardless of the lawful maximum length of the underlying term.

22A. In support of this complaint and any opposition to demurrer, Plaintiff will request that the Court take judicial notice, pursuant to Evidence Code sections 451 and 452, of the following matters: Penal Code sections 3000, 3001, and 3008; Title 15, California Code of Regulations sections 3574 and 3720 through 3723, including the amendments to section 3574 effective April 17, 2025; the order in In re Dwyer (San Mateo Super. Ct. No. SC-080355A, Mar. 20, 2023); the records and tentative ruling in Newanforbi v. Macomber (Sacramento Super. Ct. No. 26WM000028); and the government tort claim and proof of presentment attached hereto.

These are matters of law and official record properly subject to judicial notice. A formal Request for Judicial Notice is or will be filed concurrently or in connection with any responsive briefing.

GENERAL ALLEGATIONS

Plaintiff's Parole Status, Employment Capacity, and Treatment History

23. Plaintiff was released to parole on December 2, 2020. He is required to register pursuant to Penal Code sections 290 through 290.023 and participates in the Sex Offender Management Program ("SOMP") as a condition of supervision. His supervision category is "SA" (Sex Offender Active) with a CSRA score of 2 (Moderate). He is supervised by the Stockton 2 GPS Parole Unit, Region N. For the purposes of this damages action, Plaintiff does not contest the length of his parole term; his claims arise from the manner in which the November 2025 review was executed.

24. Plaintiff is a qualified journeyman CDL truck driver. His W-2 records and Centerline Drivers wage documentation reflect a regular hourly rate of $33.35 and a premium rate of $50.03 for CDL work, supporting a but-for earning capacity of approximately $72,000 per year. The conditions enforced under the November 19, 2025 decision—24/7 GPS monitoring, curfew, geographic restrictions, and mandatory treatment attendance consuming 6 to 8 hours per week—are incompatible with the multi-day, long-haul routes that journeyman CDL employment requires, and have prevented Plaintiff from pursuing unrestricted CDL employment. These losses accrue at approximately $6,000 per month for each month the void decision remains operative.

25. Plaintiff has participated in the HOPE Psychotherapy, Inc. ("HOPE") treatment program continuously since December 2020. During that time he has been reassigned among approximately seven clinicians owing to HOPE's staff turnover, disrupting continuity of care and forcing repeated phase restarts. Despite these disruptions, Plaintiff has advanced to Core Phase,

Block 1, Module 4 of 7. HOPE has never certified Plaintiff as having "completed" treatment; that characterization is the automatic output of a blanket retention policy under which no parolee can complete treatment prior to discharge, a structure judicially condemned in In re Dwyer (San Mateo Super. Ct. No. SC-080355A, Order Mar. 20, 2023).

CDCR's Voluntary Election to Undertake the November 2025 Review

26. CDCR was under no compulsion that required the particular review it conducted in November 2025; on the contrary, in the companion proceeding CDCR took the position that it had no duty to provide Plaintiff an individualized review, and the court found it "unclear why CDCR appeared to undertake parole discharge review and issue the Discharge Review Report" and noted that CDCR "refuse[d] to provide any explanation for this course of conduct." CDCR nonetheless elected to open a formal Discharge Review, generate an official CDCR Form 1502-DR, route it through a field agent, a unit supervisor, and a regional Parole Administrator, and enter an operative "Discharge Denied/No Action" determination into Plaintiff's permanent file.

27. Having voluntarily undertaken that formal adjudication, Defendants assumed a duty to perform it with reasonable care and in compliance with the ministerial requirements governing such reviews. A public entity that elects to act, even where it need not have acted, must act non-negligently; it does not enjoy discretion to misidentify the subject of the adjudication, to invent eligibility rules, to use a superseded form, or to conceal the result. The breach alleged here is therefore independent of, and does not depend upon, any duty to discharge Plaintiff.

The Facial Defects in the November 2025 Discharge Review

28. On or about November 14, 2025, CDCR parole agent Long Moua (not a defendant) prepared and signed the CDCR Form 1502-DR recommendation for Plaintiff. A true and correct

copy is attached as Exhibit B. The report is void on its face in the following respects, each provable from the four corners of the document:

a. Misidentification of the subject. Supervisor Noguchi's comments state that "Eagan has only completed approximately 4 years of the required 6.5 years of supervision." Plaintiff's name is Newanforbi, not Eagan. A report adjudicating one person's liberty by reference to another person by name is documentary proof that no individualized review of Plaintiff occurred.

b. Fabricated 6.5-year minimum. The report invokes a "6.5 years of [required] supervision" benchmark that appears in no statute, regulation, or duly promulgated rule. This is an underground regulation within the meaning of Government Code section 11340.5 and may not lawfully be enforced. (Tidewater Marine Western, Inc. v. Bradshaw (1996) 14 Cal.4th 557.)

c. Fabricated Policy 19-03 exclusion. The report states Plaintiff "is not eligible for EDC at this time due to having a 10-year parole term" under "Policy 19-03 (Amended)." No published version of Policy 19-03 contains such a categorical exclusion; it, too, is an unpublished, unpromulgated rule.

d. Mutually exclusive frameworks. The report classifies Plaintiff's case as "Case Type: PC3000(b)(5)(B)"—a provision associated with a three-to-five-year framework—while simultaneously denying review on the basis of a "10-year parole term." The two are inconsistent on the face of the form, demonstrating that the document was assembled mechanically rather than reviewed.

e. Obsolete form. The review was conducted on CDCR Form 1502-DR (Rev. 01/22), bypassing the structured scoring rubric and process embodied in the current form

and the procedures adopted effective April 17, 2025.

f. Omission of mandatory documentation. The report contains no CTM findings, no CDCR Form 3043, no treatment-provider signature, and no written good-cause finding.

g. Non-service. The "Parolee Provided Copy (Date)," "Mailed By," and "Delivered By (Initials)" fields on page 5 are blank. Plaintiff was never served and learned of the decision only through his own inquiry.

Ratification and Finalization

29. Supervisor Noguchi reviewed and ratified the report, signing it on November 19, 2025 and authoring the comment that names "Eagan." Parole Administrator Dodd performed the final review and signed the same day, November 19, 2025, under badge number 6462 and, despite the patent defects, concurred without correction or remand, recording her concurrence and approving "Discharge Denied/No Action." The very purpose of supervisory and administrative review is to catch errors of exactly this kind—a misidentified subject, an invented eligibility rule, an obsolete form—before they become operative. Because these defects were apparent on the face of the document, neither Noguchi nor Dodd can characterize their concurrence as reasonable reliance on the agent's work; the defects were precisely what their review existed to detect and correct. Dodd's signature converted the field-level errors into an operative decree that has bound Plaintiff to continued GPS monitoring, curfew, treatment obligations, and the threat of reincarceration.

30. But for the creation of the defective recommendation by agent Moua and its ratification and finalization by Defendants Noguchi and Dodd, no operative November 19, 2025 decision would exist, and Plaintiff would not be subject to enforcement of its terms. Defendant Rojo's failure to serve the decision deprived Plaintiff of notice and the opportunity to contest it. The conduct of each Defendant is a substantial factor in the harm alleged, and CDCR is

responsible for the conduct of its agent Moua under Government Code section 815.2(a).

Defendants' Knowledge That the Process Was Defective

31. By November 2025, the structural defects in CDCR's SOMP retention practices had been judicially identified in In re Dwyer (2023) and were the subject of the Sacramento mandate litigation, and the April 17, 2025 amendments to 15 CCR section 3574 had been adopted. On information and belief, Dodd, as the Northern Region Parole Administrator responsible for SOMP cases, had actual or constructive knowledge of these developments and of the ministerial requirements governing discharge reviews. Defendants proceeded to execute a review riddled with the very defects those authorities addressed, including a misidentification so basic that it named a different parolee.

The Nature of Plaintiff's Injuries

32. Loss of liberty (per diem value). The conditions enforced under the void decision—continuous 24/7 GPS tracking, curfew, geographic restrictions, mandatory treatment multiple times per week, warrantless searches, and association and employment limitations—constitute a substantial deprivation of liberty. As a benchmark for the value of that deprivation, Penal Code section 4904 authorizes recovery of not less than $70 per day for wrongfully imposed parole supervision; because the conditions here are substantially more restrictive than ordinary parole, the per diem value is no less than $100 per day from November 19, 2025 onward, subject to proof. From November 19, 2025 to the execution date of this complaint exceeds 200 days.

33. Documented economic losses—lost CDL wages. Plaintiff's W-2 records and the Centerline Drivers Wage Notice dated October 31, 2024 reflect active CDL qualifications commanding $33.35/hour regular and $50.03/hour premium pay. The restrictions enforced under

the November 19, 2025 decision have prevented Plaintiff from pursuing and maintaining unrestricted CDL employment commensurate with that capacity, causing losses that accrue at approximately $6,000 per month for each month the void decision remains operative. These post-November 19, 2025 losses are directly and proximately caused by the finalization and enforcement of the defective instrument.

34. Out-of-pocket costs of forced compliance. Plaintiff has incurred and continues to incur direct costs of compliance, including transportation to and from mandatory HOPE sessions (approximately 30 miles round trip, multiple times per week) at the IRS standard mileage rate; the time value of attendance estimated at 6 to 8 hours per week; program fees, polygraph examinations, and mandated assessments; and GPS maintenance and charging costs—all according to proof.

35. Emotional distress and reputational harm. Plaintiff has suffered severe emotional distress, including anxiety from continuous GPS monitoring imposed on a fabricated and misidentified basis; depression, sleep disruption, and hypervigilance from living under the threat of reincarceration on a void instrument; the particular indignity of learning that the document governing his liberty refers to another person by name; humiliation from being labeled "non-compliant"; and reputational harm from being characterized as having "failed" a program that is structurally impossible to complete before discharge.

FIRST CAUSE OF ACTION

NEGLIGENCE; NEGLIGENT UNDERTAKING

(Against All Defendants)

36. Plaintiff incorporates each preceding allegation as though fully set forth herein.

37. Independent of any statutory duty to discharge Plaintiff, Defendants owed Plaintiff a duty of reasonable care arising from their voluntary undertaking of a formal adjudication of his parole status. One who undertakes to render an official determination affecting another's liberty must exercise reasonable care in performing it. Having elected to open a Discharge Review, generate an official 1502-DR, and enter an operative determination, Defendants were obligated to perform that undertaking competently—at minimum, to verify that the subject of the review was Plaintiff and not another person, to rely only on duly promulgated rules, to use the operative form, and to serve the result.

38. The acts and omissions alleged are ministerial, operational, and clerical—not discretionary policy choices. Whatever discretion may attend the ultimate decision whether to retain or discharge a parolee, no discretion attends the mechanical execution of the review: typing the correct parolee's name rather than another person's ("Eagan"), using the operative form rather than a superseded one, aggregating the scores actually printed on the form, applying only duly promulgated rules, and serving the completed decision are tasks "in which the officer is left no choice of his own." Each individual Defendant is personally liable under Government Code section 820(a) for injury caused by these acts and omissions to the same extent as a private person. The discretionary immunity of Government Code section 820.2 does not apply, because Plaintiff's injury results not from any policy judgment to undertake the review but from Defendants' negligence in performing it after electing to do so. (McCorkle v. City of Los Angeles (1969) 70 Cal.2d 252, 261 [classification of an act as discretionary does not immunize negligence in its performance after the discretionary decision to act]; Kavanaugh v. West Sonoma County Union High School Dist. (2003) 29 Cal.4th 911; Caldwell v. Montoya (1995) 10 Cal.4th 972.) Government Code section 820.4 likewise does not immunize the affirmative misconduct alleged. The errors here—using the wrong person's name, an obsolete form, and fabricated rules, and failing to serve the result—are operational and clerical failures in carrying out the review, not high-level policy decisions entitled to immunity.

39. Defendants breached the duty of care in the following respects: CDCR, through its agent Long Moua, prepared a recommendation applying fabricated eligibility rules and an obsolete form and failed to verify Plaintiff's identity or aggregate the mandatory criteria; Defendant Noguchi ratified a report that on its face named a different parolee ("Eagan"); Defendant Dodd finalized that report without correction or remand despite its patent defects; and Defendant Rojo failed to serve the completed decision. The defects in the recommendation were facial and obvious, and the duty of supervisory and administrative review existed precisely to identify and correct them; accordingly, Defendants Noguchi and Dodd cannot excuse their conduct as reasonable reliance on the agent's work, and their adoption of a facially void recommendation without correction was itself a breach of their own duty of care. Each breach was a substantial factor in causing Plaintiff's injuries.

40. As a direct and proximate result, Plaintiff has suffered the injuries described above, including post-November 19, 2025 lost CDL wages accruing at approximately $6,000 per month, out-of-pocket compliance costs, loss of liberty valued at no less than $100 per day, and severe emotional distress, all according to proof.

SECOND CAUSE OF ACTION

FALSE IMPRISONMENT

(Against All Defendants)

41. Plaintiff incorporates each preceding allegation as though fully set forth herein.

42. The elements of false imprisonment are (1) nonconsensual, intentional confinement of a person; (2) without lawful privilege; and (3) for an appreciable period. (Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715.) Government Code section 820.4 does not exonerate a public employee from liability for false imprisonment.

43. Nonconsensual confinement. Since November 19, 2025, Plaintiff has been subjected to continuous GPS monitoring, curfew, geographic restrictions, mandatory treatment, warrantless searches, and the threat of reincarceration—restraints functionally equivalent to custodial confinement and enforced without his consent.

44. Absence of lawful privilege. The privilege to enforce a custodial decision depends on the validity of the instrument that authorizes it. The November 19, 2025 decision is void on its face: it names a different parolee ("Eagan"), rests on fabricated rules, was prepared on an obsolete form, and was never served. The enhanced and physically intrusive conditions enforced against Plaintiff after that date—continuous 24/7 GPS tracking, curfew, and warrantless home and person searches—drew their ongoing administrative authority entirely from that November review instrument. Because the instrument is a nullity that facially adjudicates the status of another human being, it supplied no lawful directive to support those conditions, and the agents who enforced them after November 19, 2025 did so without privilege. That Plaintiff may remain subject to some lawful term of supervision does not privilege restraint imposed under a void instrument; the lawfulness of the underlying term and the validity of this particular instrument are distinct questions. Just as an officer cannot fabricate a warrant and then defend the resulting detention on the ground that the person was guilty, Defendants cannot fabricate and misidentify a discharge determination and then claim privilege to enforce its enhanced conditions. Even assuming arguendo that some form of parole supervision was authorized under Penal Code section 3000(b)(2)(B), the specific conditions and restraints imposed on Plaintiff flowed directly from this facially defective instrument, which conferred no lawful privilege to enforce them in this manner. A custodial actor who enforces restraint under an order that on its face describes a different person loses any claim of privilege. (Sullivan v. County of Los Angeles (1974) 12 Cal.3d 710, 718-720.) Plaintiff does not contend his parole term is unlawful; he contends this instrument conferred no privilege to enforce it.

45. Appreciable period; continuing tort. The restraint has continued from November 19, 2025 to the present. Each day of continued enforcement under the void instrument constitutes a separate, independently actionable restraint.

46. The instrument that supplied the predicate for the restraint was created by CDCR's agent Moua and ratified by Defendant Noguchi; Defendant Dodd finalized it; and Defendant Rojo's non-service perpetuated and concealed it. As a direct and proximate result, Plaintiff has suffered loss of liberty valued at no less than $100 per day from November 19, 2025, together with the economic and emotional injuries described above, according to proof. CDCR is liable for the conduct of its agent Moua under Government Code section 815.2(a).

THIRD CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(Against All Individual Defendants)

47. Plaintiff incorporates each preceding allegation as though fully set forth herein.

48. The elements of intentional infliction of emotional distress are (1) extreme and outrageous conduct; (2) intention to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe emotional distress; and (4) actual and proximate causation. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.) Conduct that would be outrageous from any actor is especially so from custodial officials wielding state power over a person's liberty. (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 498-499.)

49. It is extreme and outrageous for state officials entrusted with custodial power to strip a person of liberty, restrict his livelihood, and subject him to 24/7 monitoring through an official instrument that, on its face, adjudicates the status of a different human being. Defendant Noguchi

personally authored, reviewed, and electronically endorsed a recommendation that determined Plaintiff's continued loss of liberty, yet his comments refer to "Eagan." Confining a person on the strength of a document that does not even purport to describe that person treats him as an interchangeable bureaucratic placeholder rather than as a human being whose freedom is at stake.

50. Defendant Dodd's decision to finalize the determination despite the facial "Eagan" misidentification, the framework contradiction, the fabricated 6.5-year rule, and the absence of any mandatory process was undertaken with at least reckless disregard for Plaintiff's liberty and emotional well-being. On information and belief, Dodd knew or should have known that approval would subject Plaintiff to indefinite GPS monitoring and the loss of fundamental freedoms.

51. Each individual Defendant acted with, at minimum, reckless disregard of the probability of causing severe emotional distress. As a direct and proximate result, Plaintiff has suffered the severe emotional distress described above.

FOURTH CAUSE OF ACTION

BREACH OF MANDATORY DUTY

(Gov. Code Sec. 815.6; Against CDCR)

52. Plaintiff incorporates each preceding allegation as though fully set forth herein. This cause of action is pleaded in the alternative and is independent of any duty to discharge Plaintiff.

53. Government Code section 815.6 provides that where a public entity is under a mandatory duty imposed by an enactment designed to protect against the risk of a particular kind of injury, the entity is liable for an injury of that kind proximately caused by its failure to discharge the duty. The mandatory duties at issue here are not duties to grant Plaintiff early discharge; they are the procedural duties that govern how a discharge review, once conducted,

must be carried out.

54. Penal Code section 3001, subdivision (a)(2), together with the discharge-review regulations, Title 15, California Code of Regulations sections 3720 through 3722, establishes a discharge-review framework that imposes mandatory requirements on CDCR and its Division of Adult Parole Operations whenever a discharge review is conducted: the Division "shall" conduct the review according to the prescribed procedures (Sec. 3720), "shall consider" the supervised person's adjustment and all relevant information (Sec. 3722(a)), and shall document the review in a discharge review report (Sec. 3721). These provisions use mandatory language and govern the execution of a review that CDCR did in fact undertake; they do not depend on, and Plaintiff does not assert, any independent right to early discharge. The April 17, 2025 amendments to Title 15 section 3574 reinforce these duties in the SOMP-retention context by prescribing the individualized process, documentation, and findings governing how discharge-related decisions must be made for supervised persons in Plaintiff's category. Collectively these enactments are intended to protect the particular class of persons, including Plaintiff, against the specific injury he suffered: being subjected to continued parole supervision and enhanced conditions without a valid, timely, and properly documented discharge determination.

55. Once CDCR elected to conduct a discharge review and issue a CDCR Form 1502-DR, these mandatory duties attached and left no room for policy judgment in their execution. CDCR, acting through its agent Long Moua and its employees Defendants Noguchi, Dodd, and Rojo, breached them by conducting the review on an obsolete form, applying unpromulgated rules, failing to verify the subject's identity, failing to aggregate the scoring criteria actually printed on the form, omitting the documentation and good-cause findings required by section 3574, and failing to serve the result. CDCR did not exercise reasonable diligence to discharge these duties. As a direct and proximate result, Plaintiff suffered the injuries described above. CDCR is additionally liable, on a vicarious basis, under Government Code section 815.2(a) for the acts and omissions of its employees committed within the course and scope of their employment.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment in his favor and the following relief:

A. Economic Damages

1. Lost CDL wages accruing at approximately $6,000 per month from November 19, 2025 through the date of judgment, for each month Plaintiff remains unable to pursue unrestricted CDL employment as a result of enforcement of the void November 19, 2025 decision, measured against a but-for earning capacity of approximately $72,000 per year, according to proof;

2. Out-of-pocket costs of forced compliance, including transportation, time value of attendance, program fees, polygraph examinations, and GPS maintenance costs, according to proof;

3. All past and future economic losses according to proof at trial.

B. Non-Economic Damages

1. Loss of liberty resulting from enforcement of the void decision, valued at no less than $100 per day from November 19, 2025 to the date of judgment;

2. Severe emotional distress, anxiety, depression, sleep disruption, hypervigilance, humiliation, and reputational harm;

3. All past and future non-economic damages according to proof at trial.

C. Punitive and Exemplary Damages

1. Punitive and exemplary damages against the individual Defendants Dodd, Noguchi, and Rojo, in their individual capacities, pursuant to Civil Code section 3294, based on their willful, oppressive, and malicious conduct in ratifying, finalizing, and concealing an instrument that identified a different parolee by name, invoked fabricated eligibility rules, and was never served, in conscious disregard of Plaintiff's rights;

2. Punitive damages are sought only against the individually named Defendants, and not against CDCR. (Gov. Code Sec. 818.)

D. Other Relief

1. Costs of suit incurred herein;

2. Pre-judgment and post-judgment interest as permitted by law;

3. Such other and further relief as the Court deems just and proper.

For the avoidance of doubt, Plaintiff does not by this action seek release from parole, an order compelling any future parole determination, or any adjudication of the lawful length of his parole term. Plaintiff seeks only money damages for the discrete tortious conduct alleged.

INDEX OF EXHIBITS

The following exhibits are attached to and incorporated in this Complaint:

Exhibit A — Government tort claim presented to the California Government Claims Program on April 23, 2026, with proof of presentment and fee payment (Confirmation No. 26042324436661);

Exhibit B — CDCR Form 1502-DR Discharge Review Report (Rev. 01/22), authored and signed by CDCR parole agent Long Moua on November 14, 2025, ratified and signed by Defendant Noguchi and finalized by Defendant Dodd on November 19, 2025, including the page 5 service fields left blank and the supervisor comment referencing "Eagan".

ELECTION OF BENCH TRIAL

Plaintiff hereby elects to have this matter tried by the Court sitting without a jury.

Dated: June 8, 2026

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, am the Plaintiff in this action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters, I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on June 8, 2026, at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI